

BUSINESS AND COMMERCE CODE

TITLE 12. RIGHTS AND DUTIES OF CONSUMERS AND MERCHANTS

CHAPTER 607. PAYMENT CARD SKIMMERS ON MOTOR FUEL METERING
DEVICES

SUBCHAPTER A. GENERAL PROVISIONS

Sec. 607.001. DEFINITIONS. In this chapter:

(1) "Center" means the financial crimes intelligence center established under Chapter 2312, Occupations Code.

(1-a) "Commission" means the Texas Commission of Licensing and Regulation.

(1-b) "Credit card issuer" has the meaning assigned by Section 505.001.

(2) "Department" means the Texas Department of Licensing and Regulation.

(2-a) "Executive director" means the executive director of the department.

(3) "Financial institution" has the meaning assigned by Section 277.001, Finance Code.

(3-a) "Institution of higher education" has the meaning assigned by Section 61.003, Education Code.

(4) "Merchant" means a person whose business includes the sale of motor fuel through motor fuel metering devices to retail customers.

(5) "Motor fuel" and "motor fuel metering device" have the meanings assigned by Section 2310.001, Occupations Code.

(5-a) "Motor fuel unattended payment terminal" means a point-of-sale terminal or kiosk that is operated by a customer

to activate or complete a transaction at a motor fuel metering device through the use of a payment card or a payment by other electronic means.

(6) "Payment card" has the meaning assigned by Section 522.001.

(6-a) "Payment card network" means an entity that directly, or through a licensed member, processor, or agent, provides the proprietary services, infrastructure, and software that route information and data to conduct debit card or credit card transaction authorization, clearance, and settlement, and that an entity uses in order to accept as a form of payment a brand of debit card, credit card, or other device that may be used to carry out debit or credit transactions.

(7) "Service company" and "service technician" have the meanings assigned by Section 2310.151, Occupations Code.

(8) "Skimmer" means a wire or electronic device that is capable of unlawfully intercepting electronic communications or data to perpetrate fraud.

(9) Repealed by Acts 2021, 87th Leg., R.S., Ch. 336 (H.B. 2106), Sec. 12(1), eff. September 1, 2021.

Added by Acts 2019, 86th Leg., R.S., Ch. 863 (H.B. 2945), Sec. 1, eff. September 1, 2019.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 336 (H.B. 2106), Sec. 2, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 336 (H.B. 2106), Sec. 12(1), eff. September 1, 2021.

Sec. 607.002. ADMINISTRATION AND ENFORCEMENT OF CHAPTER.

(a) The department shall administer and enforce this chapter.

(b) The commission or the executive director may enforce this chapter, a rule adopted under this chapter, or an order of the commission or executive director as provided by Subchapters F and G, Chapter 51, Occupations Code.

Added by Acts 2021, 87th Leg., R.S., Ch. 336 (H.B. 2106), Sec. 3, eff. September 1, 2021.

Sec. 607.003. FUNDING. The department may solicit and accept gifts, grants, and other donations for purposes of administering this chapter, except that the department may not solicit or accept a gift, grant, or other donation from a license holder as defined by Section 2310.151, Occupations Code.

Added by Acts 2021, 87th Leg., R.S., Ch. 336 (H.B. 2106), Sec. 3, eff. September 1, 2021.

Sec. 607.004. RULES. The commission shall adopt rules for administering this chapter.

Added by Acts 2021, 87th Leg., R.S., Ch. 336 (H.B. 2106), Sec. 3, eff. September 1, 2021.

SUBCHAPTER B. DUTIES RELATED TO USE OF CERTAIN UNATTENDED
PAYMENT TERMINALS

Sec. 607.053. NOTICE OF DISCOVERY OF SKIMMER REQUIRED.

(a) If a service technician discovers a skimmer in or on a motor fuel unattended payment terminal or motor fuel metering device, the service technician or service company that employs the technician shall notify the department and the merchant of the